This form is approved by the Illinois Supreme Court and is required to be accepted in all Illinois Circuit Courts. Forms are free at ilcourts.info/forms. 1

| STATE OF ILLINOIS, CIRCUIT COURT<br>_____ COUNTY | SMALL CLAIMS COMPLAINT | For Court Use Only 2 |
|---|---|---|

**Instructions**

Directly above, enter the name of the county where you are filing the case.

Enter your name as Plaintiff.

Enter the names of all people or businesses you are suing as Defendants.

The Circuit Clerk will add a Case Number.

Zirui Ye
**Plaintiff** *(First, middle, last name)*

v.

**Defendants** *(First, middle, last name or business name)*:
Central East Asian Cuisine

**Case Number**

**Jury Trial Request by Filing Separate Form.** If you want your case decided by a jury instead of a judge, you have to file a *Jury Request* form. Jury trials can sometimes be more complicated and an additional fee may be required. 3

In **1**, enter your name.

In **2**, enter the name and address of each Defendant.

If you are suing more than 2 Defendants, use the *Additional Defendants (Small Claims Complaint)* form and attach it.

In **3**, enter the amount of money that is owed to you. It must be $10,000 or less. Do not include court costs. Check **3a**, **3b**, or **3c**. If you have a written agreement, attach that contract or other document as proof of your agreement to this *Small Claims Complaint,* or explain why you cannot.

In **4**, check the box if it applies.

11 **1.** I, Zirui Ye, am the Plaintiff. 4
*First, Middle, Last*

**2.** Defendant's name and address is: Central East Asia Cuisine 5
*First, Middle, Last*
2353-2355 S Wentworth Ave, Chicago, IL 60616
*Street, Unit # City State ZIP*

Defendant #2's name and address is: _____ 6
*First, Middle, Last*
_____
*Street, Unit # City State ZIP* 7

☐ I have listed additional Defendants on the attached *Additional Defendants (Small Claims Complaint)* form. 8

**3.** Defendants owe me $ 5,500.00 and *(check one)*: 9

☑ a. I have no written agreement with Defendants. 10
☐ b. I have a written agreement with Defendants and it is attached.
☐ c. I have a written agreement with Defendants but I have not attached it because:
_____
_____ .

**4.** ☑ I have demanded payment of the amount listed in Section 3 and Defendants have failed to pay in full. 12

Enter the Case Number given by the Circuit Clerk:_____

In **5**, enter the reasons why Defendant owes this money to you.

If you need more space, complete the *Additional Reasons (Small Claims Complaint)* form and check the box.

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**5.** Defendants owe me this amount of money because: On May 30th, 2024, I dined in at this restaurant. Two friends were with me. We ordered Big Plate Whole Chicken. There was small bones in this cuisine I cracked one of my teeth immediately. I notified the staff and they apologized. I thought it was fine but then the pain increased so much more later that day and the second day. I then had to visit my dentist to extract the tooth because the dentist did an x-ray showing that the tooth was basically broken.
July this year I did my dental implant for this missing tooth and it cost around $4500. I want to sue this restaurant to get compensated for the total cost of my dental treatment as well as emotional stress. Thus, I demand a total amount of $5500.

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☐ I have attached an *Additional Reasons (Small Claims Complaint)* form.

Under Illinois Supreme Court Rule 137, your signature means that you have read the document, that to the best of your belief, it is true and correct and that you are not filing it for an improper purpose, such as to cause delay.

If you are completing this form on a computer, sign your name by typing it. If you are completing it by hand, sign and print your name.

Enter your complete address, telephone number and email address, if you have one.

3

/s/ Zirui Ye
*Your Signature*

Zirui Ye
*Print Your Name*

545 N McClurg Court
*Street Address*

Chicago, IL, 60611
*City, State, ZIP*

4

(872) 985-6248
*Telephone*

ziruiye2022@u.northwestern.edu
*Email Address*

5

*Attorney # (if any)*

**GETTING COURT DOCUMENTS BY EMAIL:** You should use an email account that you do not share with anyone else and that you check every day. If you do not check your email every day, you may miss important information, notice of court dates, or documents from other parties.

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